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1. Legal character of appeal procedure

1.1. General

The provisions governing the appeal procedure are set out in Art. 106 EPC to Art. 111 EPC and R. 99 EPC to R. 103 EPC and in the Rules of Procedure of the Boards of Appeal. R. 100(1) EPC plays an important role since it stipulates that, unless otherwise provided, the provisions relating to proceedings before the department which had taken the decision impugned shall apply to appeal proceedings. This application by analogy is, however, not automatically permissible in every case and for every provision (G 1/94, OJ 1994, 787). Criteria therefore had to be established for when such an analogy was permissible and when not. To this end it was necessary to analyse the legal nature of the appeal procedure.

Appeal proceedings are wholly separate and independent from the proceedings at first instance. Their function is to give a judicial decision upon the correctness of a separate earlier decision taken by a department (T 34/90, OJ 1992, 454; G 9/91, OJ 1993, 408; G 10/91, OJ 1993, 420; T 534/89, OJ 1994, 464; T 506/91). Appeal proceedings are not and were never intended to be the mere continuation of first-instance proceedings (T 34/90, OJ 1992, 454; T 501/92, OJ 1996, 261; T 1251/07; T 719/09; T 177/18). In the revised version of the RPBA, Art. 12(2) RPBA 2020 now expressly states that the primary object of the appeal proceedings is the review of the decision under appeal in a judicial manner.

In T 501/92 (OJ 1996, 261) the board deduced from this principle that any procedural request or statement made by a party during proceedings in the first instance was not applicable in any subsequent appeal proceedings, and had to be repeated during the latter if it was to remain procedurally effective.

The fact that the boards of appeal are courts was established in G 1/86 (OJ 1987, 447, point 14 of the Reasons). In decision G 1/99 (OJ 2001, 381) the Enlarged Board held that the appeal procedure is to be considered as a judicial procedure (see G 9/91, OJ 1993, 408, point 18 of the Reasons) proper to an administrative court (see G 8/91, OJ 1993, 346, point 7 of the Reasons; likewise G 7/91, OJ 1993, 356). In G 9/92 and G 4/93 (both OJ 1994, 875) it was decided that the extent of appeal proceedings is determined by the appeal.

These characteristics of the appeals procedure not only serve as criteria when assessing whether a provision may be applied analogously in individual cases; they also have general legal consequences in many respects. It follows from the characteristics set out by the Enlarged Board that the general principles of court procedure, such as the entitlement of parties to direct the course of the proceedings themselves ("principle of party disposition"), also apply to appeals (see G 2/91, OJ 1992, 206; G 8/91, G 8/93, OJ 1994, 887; G 9/92 and G 4/93), that a review of the decision taken by the department of first instance can, in principle, only be based on the reasons already submitted before that department (G 9/91, G 10/91), and that the proceedings are determined by the petition initiating them (*ne ultra petita*) (see G 9/92 and G 4/93). The Enlarged Board has also

made it clear that the decision-making powers of opposition divisions, and of the boards in opposition appeal proceedings, are circumscribed by the statement under R. 55(c) EPC 1973 (R. 76(2)(c) EPC) of the extent to which the European patent is opposed. They have no powers to decide and thus investigate anything extending beyond that statement (see G 9/91). This defined the sphere of application of Art. 114(1) EPC 1973, and clarified the distinction between the power to initiate and determine the object of proceedings, on the one hand, and the power to examine the facts then relevant, on the other. The individual procedural consequences and the Enlarged Board's decisions are discussed in greater detail below.

It is established jurisprudence that the boards of appeal and the Enlarged Board of Appeal respectively act as judicial bodies, which were established by law, and apply general principles of procedural law (see G 3/08, OJ 2011, 10 and G 2/08, OJ 2010, 456).

In T 1676/08 the board went on to say that one of these principles is laid down in Art. 6(1) ECHR, relying on principles of law common to the member states of the European Patent Organisation and applying to all EPO departments of the said organisation, which requires inter alia in "... the determination of his civil rights and obligations ... everyone is entitled to a **fair and public hearing** within a reasonable time by an independent and impartial tribunal established by law". It is also established jurisprudence that, for **inter partes** proceedings before a board of appeal to be fair, the board must be neutral (see e. g. R 12/09 of 15 January 2010 and T 253/95).

1.2. Rules of Procedure of the Boards of Appeal (RPBA)

The Rules of Procedure of the Boards of Appeal (RPBA) have their legal basis in Art. 23(4) EPC in conjunction with R. 12c(2) EPC (on this, see also T 700/15). They were comprehensively revised in 2019 and the new version (RPBA 2020) came into force on 1 January 2020 (for details on this, see Supplementary publication 2, OJ 2020). The aims of the revision of the RPBA were: (i) to increase efficiency by reducing the number of issues (questions) to be dealt with, (ii) to improve predictability for the parties and (iii) to promote harmonisation.

The amendments to the RPBA can be divided into two categories. Firstly, improvements have been made as regards the management of the boards' overall caseload and of individual cases. Secondly, changes have been made to clarify that the primary object of appeal proceedings is to review the decision under appeal in a judicial manner (Art. 12(2) RPBA 2020).

The boards of appeal are the first and final judicial instance in the procedures before the EPO. In this capacity, they review appealed decisions on points of law and fact. One of the consequences of their function being above all to review appealed decisions is that, as the appeal proceedings progress, the possibilities for parties to amend their case become increasingly limited.

The last time major changes had been made to the RPBA was in 2003. These related to the "core" of the appeal procedure, i.e. written and oral proceedings and various related